

# AMENDED & RESTATED MASTER SERVICES AGREEMENT

Contract Reference: **MSA-2026-001-REV2** | Effective Date: **April 1, 2026** (Superseding v1.0)

**AMENDMENT NOTICE:** This Agreement amends, restates, and supersedes in its entirety the Master Services Agreement dated January 15, 2026. Key revisions pertain to payment cycles (Section 2.2), liability thresholds (Section 7.1), accelerated incident notification (Section 5.2), and dispute venue jurisdiction (Section 10.1).

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| <b>SERVICE PROVIDER / CONTRACTOR:</b><br><b>Acme Cloud Dynamics Inc.</b><br>100 Innovation Way, Suite 400<br>New York, NY 10001<br>Notice Contact: legal@acmeclouddynamics.com | <b>CLIENT / CUSTOMER:</b><br><b>Apex Global Retail LLC</b><br>500 Madison Avenue, 18th Floor<br>New York, NY 10022<br>Notice Contact: contracts@apexretailglobal.com |
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## RECITALS & REVISED PREAMBLE

This Amended & Restated Master Services Agreement ("Agreement") is entered into and made effective as of **April 1, 2026** ("Restatement Date"), by and between **Acme Cloud Dynamics Inc.** ("Service Provider") and **Apex Global Retail LLC** ("Client"). The Parties previously entered into that certain Master Services Agreement dated January 15, 2026 ("Original Agreement"), and now desire to amend and restate the terms in their entirety.

## SECTION 1 — EXPANDED SCOPE & REVISED MILESTONES

**1.1 Performance of Enhanced Services:** In addition to core cloud migration, Service Provider shall implement enterprise generative AI analytics pipelines, real-time edge processing, and automated disaster recovery failover.

**1.2 Revised Project Deadlines & Milestones:** The Parties agree to the modified milestone timeline below:

| Milestone Description                                      | Delivery Target Date | Obligated Party  | Status / Change vs v1 |
|------------------------------------------------------------|----------------------|------------------|-----------------------|
| Milestone 1: Multi-Region Infrastructure Architecture Plan | April 30, 2026       | Service Provider | Completed & Extended  |
| Milestone 2: Disaster Recovery & Failover Simulation Test  | October 31, 2026     | Service Provider | <b>NEW Milestone</b>  |
| Milestone 3: Phase 1 Cloud Migration Final Sign-Off        | December 15, 2026    | Service Provider | Extended from Oct 15  |
| Milestone 4: Security & SOC 2 Type II Final Attestation    | January 31, 2027     | Service Provider | Extended from Nov 30  |

## SECTION 2 — INVOICING, FEES & REVISED PAYMENT TERMS

**2.1 Increased Contract Sum:** Client shall pay Service Provider an expanded aggregate contract sum of **\$240,000.00 USD** for the remaining term, payable in monthly installments of **\$20,000.00 USD** (increased from \$15,000/month).

**2.2 Payment Terms (Extended to Net 60 — Modified Term):** All undisputed invoices shall be due and payable within **sixty (60) calendar days (Net 60)** of invoice receipt (extended from thirty (30) calendar days in Original Agreement).

**2.3 Increased Late Payment Interest:** Overdue amounts shall accrue interest at the accelerated rate of **2.0% per month** (increased from 1.5% per month), calculated from the due date until paid in full.

## SECTION 3 — INTELLECTUAL PROPERTY & AI DATA RESTRICTION

**3.1 Work Made for Hire:** Client retains exclusive proprietary ownership of all Deliverables and custom code created specifically for Client.

**3.2 AI Model Training Prohibition (New Clause 3.2):** Service Provider is strictly prohibited from utilizing Client Confidential Information, proprietary code, customer records, or personally identifiable data (PII) to train, fine-tune, or benchmark any commercial artificial intelligence or machine learning model without explicit, written advance authorization from Client's Chief Information Security Officer.

## SECTION 4 — CONFIDENTIALITY & NON-DISCLOSURE

**4.1 Extended Survival Period (Modified Term):** The confidentiality and non-disclosure obligations shall survive for a period of **five (5) years** following termination or expiration (increased from three (3) years under Original Agreement).

## SECTION 5 — EXPEDITED DATA SECURITY & INCIDENT RESPONSE

**5.1 Technical Controls:** Service Provider shall maintain ISO 27001 and SOC 2 Type II certifications.

**5.2 Affirmative Duty — Accelerated 24-Hour Breach Notice (Modified Duty):** Service Provider must notify Client in writing within **twenty-four (24) hours** (accelerated from 48 hours) of discovering any confirmed or suspected data compromise or unauthorized network penetration.

**5.3 Mandatory Forensic Report Deadline (New Duty):** Service Provider shall deliver a comprehensive independent third-party forensic root cause analysis to Client within **ten (10) business days** following incident containment.

## SECTION 6 — SERVICE LEVEL AGREEMENT (SLA) & WARRANTIES

**6.1 Service Availability:** Service Provider commits to a **99.9% monthly cloud uptime availability**. Failure to meet the SLA shall entitle Client to a 5% credit of that month's service fee for every one (1) hour of unexcused downtime.

**6.2 Extended Warranty:** Deliverables warranty period is extended to **one hundred eighty (180) days** (extended from 90 days).

## SECTION 7 — REVISED LIMITATION OF LIABILITY

**7.1 Increased Liability Cap (Modified Cap):** TO THE MAXIMUM EXTENT PERMITTED BY LAW, EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING UNDER THIS REVISED AGREEMENT SHALL BE CAPPED AT **\$1,000,000.00 USD** (INCREASED FROM \$250,000.00 IN ORIGINAL AGREEMENT).

**7.2 Exclusion of Consequential Damages Waiver for Breaches (Critical Risk Flag):** The waiver of consequential, indirect, and punitive damages set forth herein shall **NOT** apply to: (a) breaches of Section 4 (Confidentiality); (b) security failures under Section 5 (Data Security); or (c) gross negligence or willful misconduct. (Substantial exposure for Service Provider).

## SECTION 8 — EXPANDED INDEMNIFICATION

**8.1 Mutual Indemnity:** Each Party shall defend and indemnify the other against third-party IP infringement claims and regulatory fines arising directly from a Party's willful breach of privacy commitments, subject to a separate regulatory defense limit of \$500,000.00 USD.

## SECTION 9 — TERM, TERMINATION & EARLY TERMINATION FEE

**9.1 Extended Term & 90-Day Renewal Window:** The term is extended through **December 31, 2027**. Either Party may opt out of auto-renewal by delivering written notice at least **ninety (90) calendar days** prior to expiration (increased from 60 days).

**9.2 Shortened Notice for Convenience (Modified Term):** Either Party may terminate for convenience upon providing **fifteen (15) calendar days' written notice** (shortened from 30 days in Original Agreement).

**9.3 Early Termination Penalty Fee (New Affirmative Penalty):** If Client elects to terminate this Agreement for convenience prior to **December 31, 2026**, Client shall pay Service Provider an early termination fee of **\$15,000.00 USD** within ten (10) days of the termination notice date to offset committed infrastructure allocation costs.

**9.4 Expedited Material Breach Cure:** Material breach cure period is reduced from 15 days to **ten (10) calendar days**.

**SECTION 10 — GOVERNING LAW & DELAWARE JURISDICTION**

**10.1 Governing Law (Changed Jurisdiction):** This Agreement shall be governed by, and construed in accordance with, the laws of the **State of Delaware** (changed from State of New York in Original Agreement), without giving effect to conflicts of laws principles.

**10.2 Exclusive Judicial Forum:** The Parties irrevocably submit to the exclusive jurisdiction of the **Court of Chancery of the State of Delaware** (and the Delaware Supreme Court on appeal), expressly waiving mandatory arbitration and jury trials.

**IN WITNESS WHEREOF, the Parties have executed this Amended and Restated Master Services Agreement as of the Restatement Date.**

**FOR SERVICE PROVIDER:**  
Acme Cloud Dynamics Inc.

**FOR CLIENT:**  
Apex Global Retail LLC

\_\_\_\_\_  
By: **Marcus Vance**  
Title: **Chief Executive Officer**  
Date: **April 1, 2026**

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By: **Elena Rostova**  
Title: **Chief Operating Officer**  
Date: **April 1, 2026**